

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 03/20/2026

ALL APPEARANCES WILL BE BY ZOOM.

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02562
CASE NAME: MARINER WALK CORPORATION VS. JULIAN TAYS
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JMT IF ENTERED
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by defendant Iris Corzo Cruz to set aside default and default judgment and to quash summons. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Mariner Walk Corporation ("Mariner") filed its complaint against defendant Iris Corzo Cruz and three other defendants on October 10, 2023. The complaint alleges a debt owed by Cruz to Mariner, a homeowners association for the community in which the property 50 Standley Court in Pittsburg (the "Property") is located. (Compl. ¶¶ 1, 4-6, 45-63 [7th, 8th, and 9th C/As]>) Mariner alleges Iris Corzo Cruz is the owner of the property, and Cruz concedes the property is her residence. The same address is listed on her motion.

On January 25, 2024, Plaintiff filed an application for an order for publication of the summons based on evidence that Plaintiff's process server had made multiple service attempts to effectuate personal service at the property without success and that despite Plaintiff's efforts, Plaintiff had not been able to locate an address for Cruz's employment or any other address where she might be located and served. (Appl. filed 1/25/2024 citing supporting evidence; Isherwood Decl. ISO Opp to Mtn. to Set Aside ¶ 3.) On February 13, 2024, the Court entered an Amended Order re: Publication of Summons ("Publication Order") authorizing Plaintiff to serve the summons by publishing a copy of the summons in the East Bay Times for four consecutive weeks. (2/13/2024 Order; Isherwood Opp. Decl. ¶ 3, Exh. B.) On March 18, 2024, Plaintiff filed a proof of service of the summons by publication, executed by a representative of the East Bay Times, showing a copy of the summons was published 2/22/2024, 2/29/2024, 3/7/2024, and 3/14/2024.

Cruz did not respond to the complaint after publication of the summons. Plaintiff applied for and obtained the default of Cruz, and her default was entered on May 29, 2024. (Isherwood Opp. Decl. ¶ 3, Exh. C.) A default judgment was entered against Cruz in favor of Mariner on December 2, 2024. (Isherwood Opp. Decl. ¶ 3, Exh. D.) The judgment was subsequently assigned to Allied Trustee Services. Cruz now moves to set aside the default and default judgment.

Legal Standards Applicable to the Motion and Related Analysis

To set aside the default and default judgment, defendant Cruz relies on two separate statutes to set aside the default and default judgment, as well as the Court's inherent power to set aside a void judgment, and Code of Civil Procedure § 418.10 to quash service of the summons. Plaintiff Mariner opposes the motion.

A. Relief under Code of Civil Procedure § 473.5 and Civil Code § 1788.61

As a preliminary matter, Plaintiff raises a strawman argument that the motion is time-barred under Code of Civil Procedure § 473(b) as it was filed more than six months after entry of the default and default judgment. That statute, however, is not the basis of Plaintiff's motion so the argument and authority are inapposite.

1. Statutory Grounds for Relief from Default and Default Judgment

Defendant moves under Code of Civil Procedure § 473.5 to set aside the default and default judgment entered against her. That statute provides that a party may move to set aside a default and default judgment entered against it "[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action." (Code Civ. Proc. § 473.5(a).) The motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. The party shall serve and file

with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc. § 473.5(b) [emphasis added].) The Court "may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action" only upon a finding the motion was timely "and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(c).)

"Section 473.5, Code of Civil Procedure 1 is the successor statute to former section 473a. It permits the court to set aside a default or default judgment against a defendant and allow him to defend the action on its merits if (1) he received through no inexcusable fault of his own, no actual notice of the action in time to appear and defend, and had not made a general appearance; (2) a default or default judgment has been entered against him by the court; (3) he acted with reasonable diligence in serving and filing the notice of motion to set aside the default or default judgment; and (4) he has a meritorious defense. (Comment [to section 473.5] -- Judicial Council.)" (*Goya v. P.E.R.U. Enterprises* (1978) 87 Cal. App. 3d 886, 890-891.)

"A party seeking relief under section 473.5 must provide an affidavit showing under oath that his or her lack of actual notice in time to defend was not caused by inexcusable neglect or avoidance of service. [Citations omitted.]" (*Anastos v. Lee* (2004) 118 Cal. App. 4th 1314, 1319 [emphasis added].)

"Section 473a was not designed to afford relief to a defendant who with 'full knowledge' of constructive service upon him remains inactive. [Citation omitted.]" (*Brockman v. Wagenbach* (1957) 152 Cal. App. 2d 603, 611 [construing former statute, now Code Civ. Proc. ¶ 473.5].) Further, as Cruz's own memorandum confirms, whether to grant relief under Code of Civil Procedure section 473.5 is in the discretion of the Court. (*Id.*)

Civil Code § 1788.61 applies when an action is brought by a "debt buyer." The record before the Court shows that the action was brought by Mariner, the homeowners' association to which defendants owed their homeowners association dues. (Compl. ¶¶ 1, 4-6, 45-63; Judg. for Pl. entered 12/2/2024.) The Court records show that after judgment for Mariner was entered, the judgment debt was assigned to Allied Trustee Services, such that the action was not "brought" by the debt buyer. (See Decl. of Address Verification filed 5/16/2025 ¶ 3 [judgment assigned to Allied on January 16, 2025]; Jacoby Opp. Decl. ¶¶ 5, 6 and Exhs. A, B.)

Even if Civil Code § 1788.61 did apply, the language and substantive grounds for obtaining relief for lack of actual notice of the action in time to defend, the requirements for the motion, and the grounds for the Court to find relief warranted are virtually identical to those of Code of Civil Procedure § 473.5(a)-(c). (See Civ. Code § 1788.61(b) and (c).)

2. The Motion Is Deficient, and the Evidence Does Not Support Granting Cruz Relief

The motion and declaration are not accompanied by, and do not otherwise show service of, the required proposed answer, motion, or other pleading in defense of the action if relief were to be granted. (Code Civ. Proc. § 473.5(b); Civ. Code § 1788.61(b).) The motion is defective and does not meet the statutory requirements in this respect. The language of the statute mandates inclusion of the proposed answer or other responsive pleading, and the Court cannot grant relief without substantial compliance with the statutory requirement. (*County of Stanislaus v. Johnson* (1996) 43 Cal.App.4th 832, 837-838 [addressing similar mandatory requirement for motion for relief under

Code of Civil Procedure § 473(b)].)

With regard to the necessary showing that Cruz had no actual notice of the lawsuit, that she was not evading service, and that her failure to respond was not the result of inexcusable neglect, Cruz states in her declaration that she "first learned about this lawsuit on or around late July 2025, even if the Notice of Levy shows a June 2, 2025 mailing date). The way [she] first learned about this lawsuit was by receiving a Notice of Levy through the mail from the Los Angeles [sic] County Sheriff's Department. I was not evading service, so my lack of actual notice of this case is not the result of evasion of service." (Cruz Decl. ¶ 2.) She states she would have answered but for these facts. (Cruz Decl. ¶ 3.) Cruz does not dispute that the Property is her address and argues that the Property address was the proper address for Mariner to attempt to effectuate service. (Cruz Decl. ¶ 1.)

In opposition to the motion, Plaintiff presents substantial evidence that Cruz was repeatedly sent mail notifications to the Property address spanning a period of approximately 16 months, none of which were returned to the senders. (Isherwood Opp. Decl. ¶¶ 3.a., 4, 5 and Exh. A; Jacoby Opp. Decl. ¶¶ 5, 6 and Exhs. A and B.) Plaintiff's counsel has filed a declaration attesting that he personally mailed to Cruz at that address a copy of the summons and complaint with a notice of acknowledgement of service on November 13, 2023, that he personally reviews all incoming mail at his office, and that the mail he sent to Cruz on November 13, 2023 has never been returned. (Isherwood Opp. Decl. ¶¶ 3.a., 4, 5 and Exh. A.) Allied's Chief Operating Officer attests to two documents mailed by Allied to the same address in February and March 2025, neither of which were returned. (Jacoby Opp. Decl. ¶¶ 5, 6 and Exhs. A and B [mailings by Allied and records maintained in ordinary course of business].) The evidence is sufficient to invoke the presumption of Evidence Code § 641 that "A letter correctly addressed and properly mailed is presumed to have been received in the ordinary course of mail." (*See also Craig v. Brown & Root* (2000) 84 Cal. App. 4th 416, 421-422 ["When the foundational facts are established, a presumption affecting the burden of producing evidence obligates the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced to support a finding of its nonexistence--in which event the trier of fact determines the existence or nonexistence of the fact from the evidence and without regard to the presumption. (§ 604.) Although the presumption disappears where, as here, it is met with contradictory evidence, inferences may nevertheless be drawn from the same circumstances that gave rise to the presumption in the first place. [Citations omitted.]" (Emphasis added.)).)

Evaluating the evidence before the Court, Cruz makes conclusory statements denying actual notice of the lawsuit, but she does not deny the mailings from Mariner and Allied were delivered to her address or offer an explanation as to why she did not receive those mailings. Even if the presumption under Evidence Code § 641 disappears solely based on Cruz's conclusory statements, the Court finds that the totality of the evidence submitted by the parties is sufficient to support a finding of receipt of the mailings. "The disappearance of the presumption does not mean there is insufficient evidence to support the trial court's finding. *Brown & Root's* declarations and documents (mailing lists) are circumstantial evidence from which the court was entitled to infer that Craig had received the memorandum and brochure. ' " [I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. *The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide*

whether or not the letter was received." ' [Citation omitted, italics in original.]" (*Id.* at 422.)

Given the voluminous number of items of mail sent to the address that Cruz concedes is her address, starting with the notice and acknowledgement with a copy of the summons and complaint in this action in November 2023, and multiple notices sent by Allied beginning in February 2025 regarding the entry of the judgment and the outstanding amounts owed to the homeowners association in the community in which her Property is located, it strains credulity that Cruz did not receive any of the multiple mailings advising her of the lawsuit, but only received the notice of levy regarding the suit in late July 2025 from the sheriff's department. One explanation is that she was evading receipt of notice by ignoring or discarding the mailings, or alternatively, she received the mailings but did not defend the action in any event. Similarly, Cruz admits she lives at the Property. Cruz offers no explanation of why no one was available to respond to the process server's attempts to personally deliver the documents on the five occasions listed in the process server's service attempts declaration.

The Court finds Cruz's declaration fails to establish that any lack of actual notice on her part was the result of excusable neglect or not her avoidance of notice. (*Pierson v. Fischer* (1955) 131 Cal. App. 2d 208, 212 [stating the predecessor statute to § 473.5 was not "designed to afford relief from judgments validly entered upon constructive notice to those 'who with full knowledge of such service upon them, by reason of receipt of a copy of the summons and complaint through the mail, remain inactive.' [Citation omitted.]"].) In the instant motion, Cruz had the opportunity to file a reply to respond to Mariner's and Allied's evidence regarding mailings notifying her of the action and the judgment, and she did not. Any reply from Defendant Cruz was due on March 13, 2026, five court days prior to the hearing on March 20, 2026. (Code Civ. Proc. § 1005(b).) As of the time of preparation of this ruling, no reply was filed.

Relief under Code of Civil Procedure § 473.5 is discretionary with the Court. (Code Civ. Proc. § 473.5(c) [court "may" set aside default or default judgment if proper showing is made].) The Court **denies** Cruz relief under Code of Civil Procedure § 473.5.

B. Void Judgment for Lack of Service

The Court has the inherent authority and explicit authority under Code of Civil Procedure § 473(d) to set aside a void judgment. (*Rogers v. Silvennan* (1989) 216 Cal. App. 3d 1114, 1122 overruled on other grounds regarding deadline for moving for relief from void judgment in *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal. 5th 207, 225.)

Defendant argues the judgment is void on its face "because no valid proof of service was filed." (MPA ISO Mtn. p. 5, ll. 27-28.) However, the Court's files reflect that there is a proof of service filed on March 18, 2024 showing service was accomplished by publication in accordance with the terms of the Publication Order. The proof shows the summons was published in the East Bay Times, a newspaper of general circulation approved by the Court for publication in the Publication Order, four times (2/22/2024, 2/29/2024, 3/7/2024, and 3/14/2024), consistent with the Publication Order requirement. Defendant does not cite any reason why the proof of service on file fails to comply with the Court's Publication Order.

To the extent Defendant contends the grounds for authorizing service by publication were not met, the Court disagrees. Service by publication is expressly permitted under Code of Civil Procedure §

415.50. The statute provides in relevant part: "A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that . . . : [¶] (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action." (Code Civ. Proc. § 415.50(a)(1) [emphasis added].)

Cruz argues that service by publication was improper because Plaintiff had "access" to her home address. (Cruz Decl. ¶ 1.) Service by publication was ordered, however, because Plaintiff filed a declaration showing its process server made five attempts to personally serve her at her home address (the Property where Cruz concedes service was proper) at different times of the day and on different days, and that the process server was unable to locate and serve her there. (Isherwood Opp. Decl. ¶ 3 and Exh. A [attaching Isherwood Decl. filed 1/25/2024 and Exhs. A and B re diligent service attempts, mailing of November 13, 2023 notice of acknowledgment, summons and complaint].) The application for service by publication was accompanied by evidence that the only available address Plaintiff had for Cruz was the Property despite attempts to locate alternative addresses for her where service might be attempted. (*Id.*)

Plaintiff was only required to show it exercised "reasonable" diligence to serve Defendant personally. Defendant has cited no authority or evidence that Plaintiff's efforts to serve her as attested in Isherwood Opposition Declaration, incorporating his prior declaration in support of the application to serve by publication, were legally or factually insufficient to show she could not be served "with reasonable diligence" at the only address known for Cruz. This satisfied Code of Civil Procedure § 415.50 to authorize service by publication. (*See also Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1318-1319 [affirming denial of § 473.5 motion where service was made by publication, and defendants' declarations were insufficient to show lack of notice was not caused by defendants' avoidance or inexcusable neglect].)

Cruz does not argue that there were other addresses where service should have been attempted other than the Property address. Cruz has not directed the Court to any deficiency in the application for the Publication Order. Cruz has not cited any authority to demonstrate that service by publication pursuant to the Publication Order was invalid under the circumstances or that there was any defect in the filed proof of service by publication. (Code Civ. Proc. § 415.50.) The default and default judgment are not void on that ground, and the Court **denies** Cruz relief based on the judgment allegedly being void.

C. Quash Service under Code of Civil Procedure § 418.10

Cruz also moves to quash service of the summons on her under Code of Civil Procedures § 418.10. The only ground she cites is that the Court lacks jurisdiction over her. (Mtn. pp. 6-8.) Cruz contends the Court did not obtain jurisdiction over her because service on her by publication was invalid, an argument the Court has rejected for the reasons set forth above. The Court finds service by publication pursuant to the Publication Order was proper and effectuated valid service under Code of Civil Procedure § 415.50. The Court also **denies** the motion to quash service under Code of Civil Procedure § 418.10 for these reasons.